

**JUDGMENT SHEET**  
**IN THE LAHORE HIGH COURT, LAHORE**  
**JUDICIAL DEPARTMENT**

Writ Petition No. 64981 of 2025

*Harris Rasheed and another*

**Versus**

*The Learned Guardian Judge and 2 Others*

**JUDGMENT**

|                            |                                                                                                |
|----------------------------|------------------------------------------------------------------------------------------------|
| <i>Dates of hearings</i>   | <i>19.12.2025 and 24.12.2025</i>                                                               |
| <i>Petitioners by</i>      | <i>M/s Samran Mushtaq Chaudhry and Arslan Fazil, learned Advocates along-with petitioners.</i> |
| <i>Respondent No. 2 by</i> | <i>Ms. Aaminah Qadir, learned Advocate along-with respondent-mother.</i>                       |

**Sultan Tanvir Ahmad J:-** This petition is directed against order dated 28.10.2025 passed by learned Additional District Judge, Lahore and order dated 30.07.2025 passed by learned Guardian Judge-III, Lahore.

2. The case is arising out of the family jurisdiction and dispute relates to custody as well as visitation rights of minor namely, Yahya (presently about thirteen years old). Respondent No. 2 (the '**respondent-mother**') gave her examination-in-chief in form of an affidavit on 22.10.2024. She was cross-examined on several dates of hearings. Eventually, on 30.07.2025 the learned Guardian Court closed the right of petitioner No. 1 (the '**petitioner-father**') to further cross-examine the *respondent-mother* and fixed the case for remaining proceedings.

3. Mr. Samran Mushtaq Ch., learned counsel for the petitioners has submitted that the right to further cross-

examine AW-3 / the *respondent-mother* was wrongly closed and the *petitioner-father* should have been given further opportunity in this regard. He submits that right of cross-examination is a valuable right of a party and is a way of discovering the truth from which the *petitioner-father* should not be lightly deprived. Adds that a real, fair and reasonable opportunity to conclude the cross-examination is required to be granted, as per the law. He has referred to cases titled “Mst. Motia Masood through Special Attorney Versus Muhammad Yasir and another”<sup>1</sup>, “Kashif Ali Khan and another Versus Sher Jan Muhammad and another”<sup>2</sup> and “Lyallpur Cotton Mills Versus Authority Under Payment of Wages Act Faisalabad”<sup>3</sup>.

4. Ms. Aaminah Qadir, learned counsel for the *respondent-mother* invited the attention of the Court towards various orders of the learned Guardian Court. She has stated that the guardian petition is pending since 01.06.2022 and the *petitioner-father* is attempting to prolong the proceedings in order to compel the *respondent-mother* to keep appearing in Courts, who is a doctor by profession and by doing this, the *petitioner-father* wants to create obstacles in obtaining her lawful rights. She has relied upon cases titled “Meera Shafi Versus Ali Zafar”<sup>4</sup>, “Munir Ahmad Bhatti Versus Mehmood Ahmad Tahir Bhatti and another”<sup>5</sup> and “Memoona Ilyas Versus Additional District Judge and Others”<sup>6</sup>.

5. I have heard the two-sides in detail on different dates of hearings and during this period of few weeks they were

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<sup>1</sup> 2020 CLC 1910

<sup>2</sup> 2006 MLD 1447

<sup>3</sup> 1985 PLC 563

<sup>4</sup> PLJ 2023 SC 327

<sup>5</sup> 2025 LHC 3300

<sup>6</sup> 2017 CLC 1747

also given opportunities to resolve the matter by way of amicable settlement.

6. Admittedly, the Guardian Petition is pending since 2022. The examination-in-chief of the *respondent-mother* was recorded on 22.10.2024. She was then cross-examined on 07.03.2025, 19.03.2025, 10.04.2025, 15.04.2025, 25.04.2025, 15.05.2025, 12.06.2025, 03.07.2025, 14.07.2025, 24.07.2025 and 30.07.2025. In addition to the same, on several dates of hearings, the *respondent-mother* remained present when, due to various reasons, no cross-examination was conducted by the learned counsel for the *petitioner-father*. On some scheduled hearing dates cross-examination was conducted until late hours. The cross-examination so far conducted comprises of about 51-pages. Learned counsel for the *petitioner-father* kept cross-examining the *respondent-mother* with intervals and in piecemeal manners.

7. Learned counsel for the *petitioner-father* has referred to Article 151 of the Qanun-e-Shahadat Order-1984 and states that the *petitioner-father* has all the rights to ask questions for impeaching credit of *respondent-mother* in order to demonstrate that she is not a truthful witness or worthy of any credit as well as to bring answers on record which are not consistent or contradictory. As already noted that a lengthy cross-examination, consisting of about 51-pages has already been conducted. The law is settled that a witness when subjected to unduly lengthy cross-examination, which also consists of many irrelevant and misdirected questions, the contradiction, if any, can lose its significance<sup>7</sup>. Such type of cross-examination is repeatedly discouraged.

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<sup>7</sup> “Muhammad Idress Versus The State” (2006 MLD 1210)

The purpose of cross-examination is to assist the Court in bringing the truth to light by disclosing or clarifying matters which witnesses may wish to conceal or confuse from motives of partisanship.....effective cross-examination could be confined within a narrow compass. The question must not go beyond reasonable limits<sup>8</sup>.

8. In “Meera Shafi” case (*supra*) lengthy cross-examination of 24-pages was conducted in the period of eight months. The Supreme Court of Pakistan termed this state of affairs as disquieting. This regrettable practice has been noticed by the Supreme Court of Pakistan as well as by this Court in several cases. In such circumstances, duty is imposed on the presiding officers, who should not remain silent spectators and they are required to be mindful that the right of cross-examination is neither unlimited nor unbridled. The trial Court should direct the counsel to confine him to relevant questions<sup>9</sup>. One must not lose sight of the fact that unnecessary cross-examination can even be damaging to the case of the party on whose behalf the cross-examination is being conducted.

9. The procedure of recording evidence is given in section 11 of the West Pakistan Family Courts Act-1964 (the ‘**Family Court Act**’). The second proviso of section 11 of the *Family Court Act* clearly provides that ... *the Family Court may forbid any question which it regards as indecent, scandalous or frivolous or which appears to it to be intended to insult or annoy or be needlessly offensive in form.*

10. Not merely indecent and scandalous questions are prohibited but at the same time frivolous, insulting, annoying

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<sup>8</sup> “Muhammad’ Shafi and 2 Others Versus The State (PLD 1967 Supreme Court 167)

<sup>9</sup> “Muhammad Akram and another Versus The state” (1984 P Cr.LJ 2362)

and offensive questions can also be forbidden by the learned Family Court. The Family Court is also empowered under section 11(3-A) of the *Family Court Act* by itself to put questions to witnesses for the purposes of elucidation of any point which it considers material in the case. These specific provisions of law are intended to ensure that the cases arising out of the family disputes or for the guardianship of the minors should be settled while remaining within certain limits. Even otherwise, the law of evidence restricts the litigants or their pleaders from exposing the witnesses to undignified treatment and the witnesses must not suffer from humiliation or intimidation at the hands of the learned advocates for parties. The Courts, when so required, must interfere, which possess ample powers to provide protection to the witnesses when they are facing such situation. I would like to reproduce the following extract from case titled “Mir Hassan and Others Versus State and Others”<sup>10</sup>:-

*“...It cannot be denied that witnesses in adversary litigation, occupy pivotal position. Without truthful witness, it may well-neigh be impossible for the Courts to reach a correct conclusion in the case. **The witnesses, therefore, should be treated with dignity and respect by the Courts in cases. The witness while deposing in cases should feel assured that any attempt by party, against whom he is deposing, to intimate or to humiliate him, will not be allowed by the Court and that he will be provided full protection against all such attempts. It cannot be denied that reluctant on the part of witnesses to give evidence in cases has been largely due to the rough and***

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<sup>10</sup> **1999 SCMR 1418**

In this regard the learned presiding officers can obtain further guidance from principles settled in the cases titled “Muhammad Munir Versus The State” (2001 P.Cr. LJ 1650), “Ali Asghar Versus The State” (2006 P Cr. LJ 1294), “Liaquat Ali Channa Versus Additional Sessions Judge, Gambat, District Khairpur and another” (2012 P Cr.LJ 1979), “Yar Muhammad Khan Versus Bashir Ahmed” (PLD 2003 Peshawar 179) and “Habibur Rehman and another Versus Malang and Others” (2005 YLR 2474).

***undignified treatment meted out to them by he Court and the humiliation and intimidation they suffer at the hands of the counsel for the party against whom they appear to depose in the case. The Court possesses ample power to provide protection to witnesses when confronted with such a situation. The present case is an example where cross-examination of prosecution witnesses continued unabated for days together on matters which were mostly irrelevant creating an impression that the Court was not alive to the proceedings going on before it. Much of the Court time could have been saved and the witnesses protected against unsavoury cross-examination by the defence counsel, with the timely intervention of the Court. The Courts should keep in view the guidelines mentioned above while regulating the cross-examination of a witness before them in cases.”***

*(Emphasis supplied)*

11. At this stage, I would also like to highlight growing tendency, in the cases emanating out of the family jurisdiction and related matters amongst the parties of unduly prolonging the cases by (i) deviating from the law of pleadings, (ii) introducing the witnesses and evidence having no relevance and (iii) lengthening the examination, like in the present one. This as a result is defeating the very object and purpose of promulgating the statutes on these subjects. The *Family Court Act* is intended to establish the Courts for expeditious settlement and resolution of disputes relating to marriage, family affairs and for the matters connected therewith. The learned Family Courts are expected by legislature to resolve the disputes within six months from the date of institution. Guidelines have been given by the legislature for every step of the proceedings, starting from the pleadings.

12. The word “material” has been inserted in section 7(2) of the *Family Court Act* through the West Pakistan Ordinance

No. X of 1966 dated 04.04.1966. Sub-section 2 of section 7 of the *Family Court Act* reads that *the plaint shall contain all material facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of the witnesses and brief summary of the facts to which they would depose*. Likewise, Order VI-Rule 2 of the Code of Civil Procedure-1908 provides that every pleading shall contain, and contain only; a statement in a concise form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved, and shall when necessary, be divided into paragraphs, numbered consecutively.

13. Somehow, it is becoming more common that the disputants in such matter and their pleaders are going beyond the material facts and deviating from the real disputes on the basis of which the parties do want to rest their claim(s) and they want to seek relief or deny it on the other hand. It is a principle of law that in pleadings each and every detail is not required to be mentioned. It is evidence which proves the pleadings<sup>11</sup>. Mere mentioning of material facts in the pleadings is sufficient regarding which the parties are required to produce their evidence at the trial stage<sup>12</sup>. In case titled “Adusumilli Gopalakrishnayya Garu Versus Province of Madras”<sup>13</sup> it was observed that *...the rule that material facts should be pleaded is no mere technicality and that an omission to observe it deprives pleadings of most of their*

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<sup>11</sup> “Mian Pir Muhammad and another Versus Faqir Muhammad through L.Rs. and Others” (PLD 2007 Supreme Court 302)

<sup>12</sup> “Altaf Hussain Versus Fida Hussain Shah” (2000 CLC 343)

<sup>13</sup> (PLD 1947 Privy Council 180)

*value and may increase the difficulty of the Court's task of ascertaining the rights of the parties.*

14. Recently, the Supreme Court of Pakistan in CP No. 930 of 2024 has held as under:-

*“2. Section 12A of the West Pakistan Family Courts Act, 1964 makes it obligatory for the Trial Court to decide / dispose of a case / family suit within a period of six months from the date of institution. Indeed, it is a right of every litigant to cross-examine the witnesses deposing evidence, but that cannot be stretched down to an unreasonable desire of the counsel and litigant seeking adjournments one after the other and the reasons which were not found sufficient by the Trial Court, as could be seen that numerous opportunities were provided.”*

It is observed that the *Family Court Act* being the special law requires firm adherence, otherwise the essence and effectiveness of the law will be frustrated. The learned Family / Guardian Courts, therefore, are required to actively curb the undesirable delays instead of becoming silent spectators and permitting the parties or their pleader to frustrate very purpose of special enactment(s). In this case, learned Appellate Court has not made any mistake while dismissing the appeal against the order of the learned Family Court closing the right to further cross-examine the *respondent-mother*. This constitution petition is **dismissed**. No order as to costs.

**(Sultan Tanvir Ahmad)**  
**Judge**

Approved for reporting.

**Judge**  
Announced in open Court on 08.01.2026.

**Judge**